

KHULA BUSINESS PREMISES (PTY) LTD

Wholly owned subsidiary of Small Enterprise Development and Finance Agency (Sedfa)
Company Registration Number 2003/002883/07
VAT Registration Number 4270218482

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REQUEST FOR QUOTATION

RFQ Number	RFQ/KBP/157 Cidb Reference Number: 100110741
RFQ Description	APPOINTMENT OF A REPUTABLE SERVICE PROVIDER TO SUPPLY AND INSTALL A PERIMETER FENCE AND ROLLER SHUTTER DOORS AT BEACON VALLEY SHOPPING COMPLEX, C/O TRAMPOLINE AND METROPOLITAN STREETS, BEACON VALLEY, MITCHELLS PLAIN, CAPE TOWN, WESTERN PROVINCE FOR KHULA BUSINESS PREMISES (PTY) LTD (KBP) THE SUBSIDIARY OF THE SMALL ENTERPRISE DEVELOPMENT AND FINANCE AGENCY (Sedfa)
Issue Date	31 October 2025
Compulsory Briefing Session	11 November 2025 @ 10:00 am. BEACON VALLEY SHOPPING COMPLEX, C/O TRAMPOLINE AND METROPOLITAN STREETS, BEACON VALLEY, MITCHELLS PLAIN, CAPE TOWN, WESTERN CAPE
Closing Date	17 November 2025 @ 11:00
Method of submission.	Email : eloape@sedfa.org.za

TERMS OF REFERENCE/ SPECIFICATION

1. PURPOSE

- 1.1. The purpose of this Request for Quotation (RFQ) is to appoint a reputable services provider to supply and install a perimeter fence at **BEACON VALLEY SHOPPING COMPLEX, C/O TRAMPOLINE AND METROPOLITAN STREET, BEACON VALLEY, CAPE TOWN, WESTERN PROVINCE** for the subsidiary of the SMALL ENTERPRISE DEVELOPMENT AND FINANCE AGENCY (Sedfa) i.e. KHULA BUSINESS PREMISES (PTY) LTD (KBP)

2. PROJECT BACKGROUND

- 2.1. Khula Business Premises (Pty) Ltd has an existing property at **BEACON VALLEY SHOPPING COMPLEX, C/O TRAMPOLINE AND METROPOLITAN STREET, BEACON VALLEY, CAPE TOWN, WESTERN PROVINCE**.
- 2.2. The property currently does not have a perimeter fence which has left the building exposed to criminals who had previously vandalized and broken into certain sections of the property.

2.3. The installation of a high-quality fence will reduce the risk of these incidents occurring and we would not only be able to enhance the property, but we will also provide a sense of security to our existing tenants

3. SCOPE OF WORK

3.1 The Service Provider will be required to supply and install a perimeter fence including gates and roller shutter doors as per the below:

Item	Description	m	Qty	Price per Qty	Total Amount
1	<u>Fence to consist of:</u> <u>Posts:</u> • Post shall be 3,0m long Cochrane Taper Locking Post (or similar) • Post width shall be 85mm - tapering to 45mm with a depth of 85mm. • Post shall include 'Locking Recess Mechanism to secure panel edge. • Post finish shall be galvanized, then Marine Fusion Bond Coated. <u>Panels:</u> • Panel shall be of 3,305m width and 2.4m in height. • Panel aperture size (centres) shall be 76.2mm x 12.7mm. • Wire diameter will be 3.5mm. • The panel shall be reinforced with 4 x 50mm deep 'V' formation horizontal	m	193		

Item	Description	m	Qty	Price per Qty	Total Amount
	recessed bands (rigidity) - Panel shall have 2 x 70° flanges along sides (internal fixtures- all fixtures shall be on the inside of fence line) - Panel shall have 1 x 30° flange along top and 1 x 30° flange along toe (integrated rigid angle). - Panel post shall have a flush panel post finish with no climbing aid. - Panel shall be affixed to post over 48-line wires using 8 x double bolt comb clamps and 8 x Single bolt comb clamps using 24 x Anti vandal bolts. - Panel and fixtures shall be galvanized, then marine fusion bond coated Panels shall be fitted with razor top rail				
2	<u>Gates:</u> Pedestrian gates - 2.4m(h) x 1.2m(w) Pedestrian gates - 2.4m(h) x 1.8m(w)		2 6		

Item	Description	m	Qty	Price per Qty	Total Amount
	Traffic sliding gate (incl track) - 2.4m(h) x 6m(w)		1		
	Traffic sliding gate (incl track) - 2.4m(h) x 4m(w)		2		
	Traffic swing gate (incl track) – 2.4m(h) x 2m(w)		1		
	Gates shall be fitted with razor top rail. All gates to have lock box protection over locking mechanism				
3	Removal and disposal of existing security gates and make good	Item	4		
4	Supply and install industrial roller shutter doors	3.65(h) x 3.9(w)	2		
5	Supply of durable, heavy duty 70 mm weatherproof padlocks	Item	14		
				Sub Total	
				VAT @ 15 %	
				Grand Total	

NB: Bidders that do not quote as per the requirements/ specification will be regarded as non-responsive, and such proposals/ quotations will be disqualified.

4. Sedfa's Roles and Responsibilities (if applicable)

- 4.1. Define the scope and expectations of services to be rendered.
- 4.2. Provide access to relevant areas and facilities for contractor.
- 4.3. Coordinate with the service provider on all operational requirements.
- 4.4. Provide orientation or briefing to contractor staff on site-specific protocols.

4.5. Monitor performance and ensure work is carried out to specifications.

5. Evaluation of the Proposal

5.1. Phase 1: SCM Document Assessment Criteria

The following assessment criteria will form the basis of the evaluation of all price proposals and failure to comply may result in the elimination of the price quotation for further evaluation:

5.1.1. Submission of completed and signed SBD 4; and

5.1.2. Submission of completed and signed SBD 6.1

5.1.3. Submission of completed and signed SBD 6.2

5.2. Phase 2: Mandatory Requirements/ Pre-qualification criteria (if applicable)

The following pre-qualification criteria will form the basis of the evaluation of all price quotations and failure to comply will result in the elimination of the price quotation for further evaluation:

No	Mandatory Requirements	Substantiating evidence of compliance (used to evaluate bid)
1.	The bidder must be registered with Construction Industry Development Board (CIDB) with CIDB 2SQ or higher;	Attach a valid certified copy of certificate as proof that the bidder is registered (please provide CRS No). NOTE (1): The certified copy of valid documentation (certificate) should clearly indicate the following information below: (i) The bidder's name; (ii) The date it was issued; and the expiry date NOTE (2): Sedfa reserves the right to verify

No	Mandatory Requirements	Substantiating evidence of compliance (used to evaluate bid)
2.	The bidder must have a minimum of two (2) contactable reference letters where similar work was successfully completed in the last three (03) years.	The bidder must have a minimum of two (2) contactable reference letters where similar work was successfully completed in the last three (03) years. NOTE (1): The Bidder must provide all of the following information a) Company name; and b) Contact person, telephone and/or e-mail address; and c) Project scope of Work; and d) Project start and End date. <u>Purchase orders and appointment letters MUST BE accompanied by completion certificates.</u> <u>UNVERIFIABLE REFERENCES MAY RESULT IN DISQUALIFICATION</u>
3.	The bidder must be registered with the Department of Labour for Compensation for Occupational Injuries and Diseases Act (COIDA).	Attach a valid COIDA certificate in line with services required.
4.	The bidder must submit a fully completed and signed SBD 6.2	The bidder must demonstrate local production and local content compliance for the purpose of this RFQ.

Bidders that fail to comply with all the mandatory requirements will not be considered for further evaluation, and they will be automatically disqualified.

5.3. Phase 3: Preference Points System

Only qualifying price quotations that achieved the minimum points for functionality will be evaluated further on the 80/20 preference points system as follows:

	Preference Point Criteria	Points Allocation
1.	Price	80
2.	Specific Goals as per the SBD 6.1	20
Total Points		100

Specific Goals and points claimed are indicated per table below:

Specific Goals Allocated and Points to claimed in terms of this RFQ								
Indicate the following to support this claim. Failure to provide the required information will result in being forfeited.								
Indicate Number of Full Time Employed Paid Employees :								_____
Total Annual Turnover or Revenue:								R_____
Size of Enterprise						Number of points allocated (80/20 system)		Number of points claimed (80/20 system) (To be completed by the tenderer)
Micro Enterprise						8		
Small Enterprise						5.6		
Medium Enterprise						3.2		
Large Enterprise						0.8		
Sworn Affidavit/ BBBEE Certificate (Ownership aligned to B-BBEE Status Level)						2		
L1	L2	L3	L4	L5	L6	L7	L8	
2	1.75	1.50	1.25	1	0.75	0.25	0	
Black Women Owned (more/≥30% owned)						4		
Target Group: Youth						2		
Spatial: Rural						4		
Spatial: Townships						2.4		
Spatial: City						0.8		

6. TERMS AND CONDITIONS

- 6.1.** Price quotations submitted must be inclusive of all costs and applicable taxes (VAT) and be valid for a period of at least 30 days.
- 6.2.** No late price quotations will be accepted under any circumstances.
- 6.3.** Failure to submit a valid Sworn Affidavit (EME) or an original/certified valid B-BBEE Status Level Verification Certificate (other than EME or QSE), CIPC, Copy of Utility Bill/Lease Agreement/Title Deed/ Letter from the

Municipality will result in no preference points being awarded for Specific Goals.

- 6.4.** Suppliers/service providers must submit Companies & Intellectual Property Commission (CIPC) company registration documents listing all Directors or Shareholders and certified ID copies of Shareholders/Directors/Members/Partners.
- 6.5.** Suppliers/service providers must complete and return all the required documents, failing which, the supplier/service provider's quotation will be declared invalid.
- 6.6.** Service providers/suppliers must submit a valid Tax Compliance Status (TCS) Certificate with a unique security personal, Identification (PIN) issued by the South African Revenue Services (SARS) certifying that the taxes of the service provider/supplier are in order must be submitted at the closing date and time of the RFQ/Bid.
- 6.7.** The hourly rates of consultants must be in accordance with the rates issued and determined by the South African Institute of Chartered Accountants, Department of Public Service and Administration or the body regulating the profession of the consultant (if applicable).
- 6.8.** Consultant's travel arrangements must be in line with the government's travel cost containment measures [air travel, vehicle hire, accommodation rates, claiming kilometers according to the rates set by the Department of Transport] (if applicable).
- 6.9.** This RFQ is subject to the National Treasury's General Conditions of Contract (GCC) that can be accessed at the following link:
- 6.10.** Sedfa is committed to a fraud-free environment. One call can keep Sedfa Fraud & Corruption Free. Individuals may report any suspicious activity by calling the Sedfa Fraud Hotline: 0800 724 666 or email sedfa@thehotline.co.za or sms: 30916 or go to <https://www.thehotline.co.za/report>.

<http://www.treasury.gov.za/divisions/ocpo/sc/GeneralConditions/General%20Conditions%20of%20Contract-%20Inclusion%20of%20par%2034%20CIBD.pdf>

Sedfa wishes to thank you in advance for your price quotation.

BIDDER'S DISCLOSURE

1. PURPOSE OF THE FORM

Any person (natural or juristic) may make an offer or offers in terms of this invitation to bid. In line with the principles of transparency, accountability, impartiality, and ethics as enshrined in the Constitution of the Republic of South Africa and further expressed in various pieces of legislation, it is required for the bidder to make this declaration in respect of the details required hereunder.

Where a person/s are listed in the Register for Tender Defaulters and / or the List of Restricted Suppliers, that person will automatically be disqualified from the bid process.

2. Bidder's declaration

2.1 Is the bidder, or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest¹ in the enterprise, employed by the state? **YES/NO**

2.1.1 If so, furnish particulars of the names, individual identity numbers, and, if applicable, state employee numbers of sole proprietor/ directors / trustees / shareholders / members/ partners or any person having a controlling interest in the enterprise, in table below.

Full Name	Identity Number	Name of institution	State

2.2 Do you, or any person connected with the bidder, have a relationship

¹ the power, by one person or a group of persons holding the majority of the equity of an enterprise, alternatively, the person/s having the deciding vote or power to influence or to direct the course and decisions of the enterprise.

with any person who is employed by the procuring institution? **YES/NO**

2.2.1 If so, furnish particulars:

.....

2.3 Does the bidder or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest in the enterprise have any interest in any other related enterprise whether or not they are bidding for this contract? **YES/NO**

2.3.1 If so, furnish particulars:

.....

3 DECLARATION

I, _____ the _____ undersigned,
 (name)..... in
 submitting the accompanying bid, do hereby make the following
 statements that I certify to be true and complete in every respect:

- 3.1 I have read and I understand the contents of this disclosure;
- 3.2 I understand that the accompanying bid will be disqualified if this disclosure is found not to be true and complete in every respect;
- 3.3 The bidder has arrived at the accompanying bid independently from, and without consultation, communication, agreement or arrangement with any competitor. However, communication between partners in a joint venture or consortium² will not be construed as collusive bidding.
- 3.4 In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications, prices, including methods, factors or formulas used to calculate prices, market allocation, the intention or decision to submit or not to submit the bid, bidding with the intention not to win the bid and conditions or delivery particulars of the products or services to which this bid invitation relates.
- 3.4 The terms of the accompanying bid have not been, and will not be, disclosed by the bidder, directly or indirectly, to any competitor, prior to the date and time of the official bid opening or of the awarding of the contract.
- 3.5 There have been no consultations, communications, agreements or arrangements made by the bidder with any official of the procuring

² Joint venture or Consortium means an association of persons for the purpose of combining their expertise, property, capital, efforts, skill and knowledge in an activity for the execution of a contract.

institution in relation to this procurement process prior to and during the bidding process except to provide clarification on the bid submitted where so required by the institution; and the bidder was not involved in the drafting of the specifications or terms of reference for this bid.

- 3.6 I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to bids and contracts, bids that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and or may be reported to the National Prosecuting Authority (NPA) for criminal investigation and or may be restricted from conducting business with the public sector for a period not exceeding ten (10) years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.

I CERTIFY THAT THE INFORMATION FURNISHED IN PARAGRAPHS 1, 2 and 3 ABOVE IS CORRECT.

I ACCEPT THAT THE STATE MAY REJECT THE BID OR ACT AGAINST ME IN TERMS OF PARAGRAPH 6 OF PFMA SCM INSTRUCTION 03 OF 2021/22 ON PREVENTING AND COMBATING ABUSE IN THE SUPPLY CHAIN MANAGEMENT SYSTEM SHOULD THIS DECLARATION PROVE TO BE FALSE.

.....	
Signature	Date
.....	
Position	Name of bidder

SBD 6.1

PREFERENCE POINTS CLAIM FORM IN TERMS OF THE PREFERENTIAL PROCUREMENT REGULATIONS 2022

This preference form must form part of all tenders invited. It contains general information and serves as a claim form for preference points for specific goals.

NB: BEFORE COMPLETING THIS FORM, TENDERERS MUST STUDY THE GENERAL CONDITIONS, DEFINITIONS AND DIRECTIVES APPLICABLE IN RESPECT OF THE TENDER AND PREFERENTIAL PROCUREMENT REGULATIONS, 2022

1. GENERAL CONDITIONS

1.1 The following preference point systems are applicable to invitations to RFQ's/Tenders:

- the 80/20 system for requirements with a Rand value from up to R50 000 000 (all applicable taxes included); and

1.2 To be completed by the organ of state

a) The applicable preference point system for this RFQ/Tender is the **80/20** preference point system.

1.3 Points for this tender (even in the case of a tender for income-generating contracts) shall be awarded for:

- (a) Price; and
- (b) Specific Goals.

1.4 To be completed by the organ of state:

The maximum points for this RFQ/Tender are allocated as follows:

	POINTS
PRICE	80
SPECIFIC GOALS	20
Total points for Price and SPECIFIC GOALS	100

1.5 Failure on the part of a tenderer to submit proof or documentation required in terms of this RFQ/Tender to claim points for **Specific Goals** with the RFQ/Tender, will be interpreted to mean that preference points for specific goals are not claimed.

1.6 The organ of state reserves the right to require of a tenderer, either before a RFQ/Tender is adjudicated or at any time subsequently, to substantiate any claim regarding preferences, in any manner required by the organ of state.

2. DEFINITIONS

- (a) **“tender”** means a written offer in the form determined by an organ of state in response to an invitation to provide goods or services through price quotations, competitive tendering process or any other method envisaged in legislation;
- (b) **“price”** means an amount of money tendered for goods or services, and includes all applicable taxes less all unconditional discounts;
- (c) **“rand value”** means the total estimated value of a contract in Rand, calculated at the time of bid invitation, and includes all applicable taxes;
- (d) **“tender for income-generating contracts”** means a written offer in the form determined by an organ of state in response to an invitation for the origination of income-generating contracts through any method envisaged in legislation that will result in a legal agreement between the organ of state and a third party that produces revenue for the organ of state, and includes, but is not limited to, leasing and disposal of assets and concession contracts, excluding direct sales and disposal of assets through public auctions; and
- (e) **“the Act”** means the Preferential Procurement Policy Framework Act, 2000 (Act No. 5 of 2000).

3. FORMULAE FOR PROCUREMENT OF GOODS AND SERVICES

3.1. POINTS AWARDED FOR PRICE

3.1.1 THE 80/20 PREFERENCE POINT SYSTEMS

A maximum of 80 points is allocated for price on the following basis:

80/20

$$Ps = 80 \left(1 - \frac{Pt - Pmin}{Pmin} \right)$$

Where

Ps = Points scored for price of tender under consideration

Pt = Price of tender under consideration

Pmin = Price of lowest acceptable tender

3.2. FORMULAE FOR DISPOSAL OR LEASING OF STATE ASSETS AND INCOME GENERATING PROCUREMENT

3.2.1. POINTS AWARDED FOR PRICE

A maximum of 80 points is allocated for price on the following basis:

80/20

$$Ps = 80 \left(1 + \frac{Pt - P_{max}}{P_{max}} \right)$$

Where

Ps = Points scored for price of tender under consideration

Pt = Price of tender under consideration

Pmax = Price of highest acceptable tender

4. POINTS AWARDED FOR SPECIFIC GOALS

4.1. In terms of Regulation 4(2); 5(2); 6(2) and 7(2) of the Preferential Procurement Regulations, preference points must be awarded for specific goals stated in the tender. For the purposes of this tender the tenderer will be allocated points based on the goals stated in table 1 below as may be supported by proof/documentation stated in the conditions of this tender:

4.2. In cases where organs of state intend to use Regulation 3(2) of the Regulations, which states that, if it is unclear whether the 80/20 or 90/10 preference point system applies, an organ of state must, in the tender documents, stipulate in the case of—

(a) an invitation for tender for income-generating contracts, that either the 80/20 or 90/10 preference point system will apply and that the highest acceptable tender will be used to determine the applicable preference point system; or

(b) any other invitation for tender, that either the 80/20 or 90/10 preference point system will apply and that the lowest acceptable tender will be used to determine the applicable preference point system,

then the organ of state must indicate the points allocated for specific goals for both the 90/10 and 80/20 preference point system.

Table 1: Specific Goals for the RFQ/Tender and points claimed are indicated as per the table below.

(The 80/20 preference point system is applicable, corresponding points will also be indicated as such).

(Note to Tenderers: The tenderer must indicate how they claim points for each preference point system. Failure of the tenderer to submit the fully completed SBD 6.1 with the points claimed and supported by proof/documentation will result in points being forfeited)

Specific Goals Allocated and Points to claimed in terms of this RFQ	
Indicate the following to support this claim. Failure to provide the required information will result in being forfeited.	
Indicate Number of <u>Full Time Employed Paid Employees</u> :	_____

Total Annual Turnover or Revenue:		R _____																
Size of Enterprise	Number of points allocated (80/20 system)	Number of points claimed (80/20 system) (To be completed by the tenderer)																
Micro Enterprise	8																	
Small Enterprise	5.6																	
Medium Enterprise	3.2																	
Large Enterprise	0.8																	
Sworn Affidavit/ BBBEE Certificate (Ownership aligned to B-BBEE Status Level)	2																	
<table border="1"> <tr> <td>L1</td> <td>L2</td> <td>L3</td> <td>L4</td> <td>L5</td> <td>L6</td> <td>L7</td> <td>L8</td> </tr> <tr> <td>2</td> <td>1.75</td> <td>1.50</td> <td>1.25</td> <td>1</td> <td>0.75</td> <td>0.25</td> <td>0</td> </tr> </table>	L1	L2	L3	L4	L5	L6	L7	L8	2	1.75	1.50	1.25	1	0.75	0.25	0		
L1	L2	L3	L4	L5	L6	L7	L8											
2	1.75	1.50	1.25	1	0.75	0.25	0											
Black Women Owned (more/ $\geq$ 30% owned)	4																	
Target Group: Youth	2																	
Spatial: Rural	4																	
Spatial: Townships	2.4																	
Spatial: City	0.8																	

The National Small Enterprise Act thresholds for defining enterprise size classes by sector, using two proxies as gazette 15 March 2019

Column 1	Column 2	Column 3	Column 4
Sectors or sub-sectors in accordance with the Standard Industrial Classification	Size or class of enterprise	Total full-time equivalent of paid employees	Total annual turnover
Agriculture	Medium	51 - 250	≤ 35,0 million
	Small	11- 50	≤ 17,0 million
	Micro	0 – 10	≤ 7,0 million
Mining and Quarrying	Medium	51 - 250	≤ 210,0 million
	Small	11- 50	≤ 50,0 million
	Micro	0 – 10	≤ 15,0 million
Manufacturing	Medium	51 - 250	≤ 170,0 million
	Small	11- 50	≤ 50,0 million
	Micro	0 – 10	≤ 10,0 million
Electricity, Gas and Water	Medium	51 - 250	≤ 180,0 million
	Small	11- 50	≤ 60,0 million
	Micro	0- 10	≤ 10,0 million
Construction	Medium	51 - 250	≤ 170,0 million
	Small	11- 50	≤ 75,0 million
	Micro	0- 10	≤ 10,0 million
Retail, motor trade and repair services.	Medium	51 - 250	≤ 80,0 million
	Small	11- 50	≤ 25,0 million
	Micro	0 – 10	≤ 7,5 million
Wholesale	Medium	51 - 250	≤ 220,0 million
	Small	11- 50	≤ 80,0 million
	Micro	0 – 10	≤ 20,0 million
Catering, Accommodation and other Trade	Medium	51 - 250	≤ 40,0 million
	Small	11- 50	≤ 15,0 million
	Micro	0 – 10	≤ 5,0 million
Transport, Storage and Communications	Medium	51 - 250	≤ 140,0 million
	Small	11- 50	≤ 45,0 million
	Micro	0 – 10	≤ 7,5 million
Finance and Business Services	Medium	51 - 250	≤ 85,0 million
	Small	11- 50	≤ 35,0 million
	Micro	0- 10	≤ 7,5 million
Community, Social and Personal Services	Medium	51 - 250	≤ 70,0 million
	Small	11- 50	≤ 22,0 million
	Micro	0 – 10	≤ 5,0 million

01:35:05

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DECLARATION WITH REGARD TO COMPANY/FIRM

4.3. Name of company/firm.....

4.4. Company registration number:
.....

4.5. TYPE OF COMPANY/ FIRM

- ☐ Partnership/Joint Venture / Consortium
- ☐ One-person business/sole propriety
- ☐ Close corporation
- ☐ Public Company

- ☐ Personal Liability Company
- ☐ (Pty) Limited
- ☐ Non-Profit Company
- ☐ State Owned Company

[TICK APPLICABLE BOX]

4.6. I, the undersigned, who is duly authorised to do so on behalf of the company/firm, certify that the points claimed, based on the specific goals as advised in the tender, qualifies the company/ firm for the preference(s) shown and I acknowledge that:

- i) The information furnished is true and correct;
- ii) The preference points claimed are in accordance with the General Conditions as indicated in paragraph 1 of this form;
- iii) In the event of a contract being awarded as a result of points claimed as shown in paragraphs 1.4 and 4.2, the contractor may be required to furnish documentary proof to the satisfaction of the organ of state that the claims are correct;
- iv) If the specific goals have been claimed or obtained on a fraudulent basis or any of the conditions of contract have not been fulfilled, the organ of state may, in addition to any other remedy it may have –
 - (a) disqualify the person from the tendering process;
 - (b) recover costs, losses or damages it has incurred or suffered as a result of that person's conduct;
 - (c) cancel the contract and claim any damages which it has suffered as a result of having to make less favourable arrangements due to such cancellation;
 - (d) recommend that the tenderer or contractor, its shareholders and directors, or only the shareholders and directors who acted on a fraudulent basis, be restricted from obtaining business from any organ of state for a period not exceeding 10 years, after the *audi alteram partem* (hear the other side) rule has been applied; and
 - (e) forward the matter for criminal prosecution, if deemed necessary.

.....
SIGNATURE(S) OF TENDERER(S)

SURNAME AND NAME:

DATE:

ADDRESS:

.....
.....
.....
.....

DECLARATION CERTIFICATE FOR LOCAL PRODUCTION AND CONTENT FOR DESIGNATED SECTORS

This Standard Bidding Document (SBD) must form part of all bids invited. It contains general information and serves as a declaration form for local content (local production and local content are used interchangeably).

Before completing this declaration, bidders must study the General Conditions, Definitions, Directives applicable in respect of Local Content as prescribed in the Preferential Procurement Regulations, 2017, the South African Bureau of Standards (SABS) approved technical specification number SATS 1286:2011 (Edition 1) and the Guidance on the Calculation of Local Content together with the Local Content Declaration Templates [Annex C (Local Content Declaration: Summary Schedule), D (Imported Content Declaration: Supporting Schedule to Annex C) and E (Local Content Declaration: Supporting Schedule to Annex C)].

1. General Conditions

- 1.1. Preferential Procurement Regulations, 2017 (Regulation 8) make provision for the promotion of local production and content.
- 1.2. Regulation 8.(2) prescribes that in the case of designated sectors, organs of state must advertise such tenders with the specific bidding condition that only locally produced or manufactured goods, with a stipulated minimum threshold for local production and content will be considered.
- 1.3. Where necessary, for tenders referred to in paragraph 1.2 above, a two stage bidding process may be followed, where the first stage involves a minimum threshold for local production and content and the second stage price and B-BBEE.
- 1.4. A person awarded a contract in relation to a designated sector, may not sub-contract in such a manner that the local production and content of the overall value of the contract is reduced to below the stipulated minimum threshold.
- 1.5. The local content (LC) expressed as a percentage of the bid price must be calculated in accordance with the SABS approved technical specification number SATS 1286: 2011 as follows:

$$LC = [1 - x / y] * 100$$

Where

x is the imported content in Rand

y is the bid price in Rand excluding value added tax (VAT)

Prices referred to in the determination of x must be converted to Rand (ZAR) by using the exchange rate published by South African Reserve Bank (SARB) on the date of advertisement of the bid as indicated in paragraph 3.1 below.

The SABS approved technical specification number SATS 1286:2011 is accessible on [http://www.thedti.gov.za/industrial development/ip.jsp](http://www.thedti.gov.za/industrial%20development/ip.jsp) at no cost.

1.6. A bid may be disqualified if this Declaration Certificate and the Annex C (Local Content Declaration: Summary Schedule) are not submitted as part of the bid documentation;

2. The stipulated minimum threshold(s) for local production and content (refer to Annex A of SATS 1286:2011) for this bid is/are as follows:

<u>Description of services, works or goods</u>	<u>Stipulated minimum threshold</u>
___ Fabricated Structural Steel ___	___ 100 % ___
_____	_____ %
_____	_____ %

3. Does any portion of the goods or services offered have any imported content?

(Tick applicable box)

YES		NO	
-----	--	----	--

3.1 If yes, the rate(s) of exchange to be used in this bid to calculate the local content as prescribed in paragraph 1.5 of the general conditions must be the rate(s) published by SARB for the specific currency on the date of advertisement of the bid.

The relevant rates of exchange information is accessible on www.resbank.co.za

Indicate the rate(s) of exchange against the appropriate currency in the table below (refer to Annex A of SATS 1286:2011):

Currency	Rates of exchange
US Dollar	
Pound Sterling	
Euro	
Yen	
Other	

NB: Bidders must submit proof of the SARB rate (s) of exchange used.

4. Where, after the award of a bid, challenges are experienced in meeting the stipulated minimum threshold for local content the dti must be informed accordingly in order for the dti to verify and in consultation with the AO/AA provide directives in this regard.

LOCAL CONTENT DECLARATION
(REFER TO ANNEX B OF SATS 1286:2011)

LOCAL CONTENT DECLARATION BY CHIEF FINANCIAL OFFICER OR OTHER LEGALLY RESPONSIBLE PERSON NOMINATED IN WRITING BY THE CHIEF EXECUTIVE OR SENIOR MEMBER/PERSON WITH MANAGEMENT RESPONSIBILITY (CLOSE CORPORATION, PARTNERSHIP OR INDIVIDUAL)

IN RESPECT OF BID NO.

ISSUED BY: (Procurement Authority / Name of Institution):

.....

NB

- 1 The obligation to complete, duly sign and submit this declaration cannot be transferred to an external authorized representative, auditor or any other third party acting on behalf of the bidder.
- 2 Guidance on the Calculation of Local Content together with Local Content Declaration Templates (Annex C, D and E) is accessible on http://www.thedti.gov.za/industrial_development/ip.jsp. Bidders should first complete Declaration D. After completing Declaration D, bidders should complete Declaration E and then consolidate the information on Declaration C. **Declaration C should be submitted with the bid documentation at the closing date and time of the bid in order to substantiate the declaration made in paragraph (c) below.** Declarations D and E should be kept by the bidders for verification purposes for a period of at least 5 years. The successful bidder is required to continuously update Declarations C, D and E with the actual values for the duration of the contract.

I, the undersigned, (full names),
do hereby declare, in my capacity as
of(name of bidder
entity), the following:

- (a) The facts contained herein are within my own personal knowledge.
- (b) I have satisfied myself that:
 - (i) the goods/services/works to be delivered in terms of the above-specified bid comply with the minimum local content requirements as specified in the bid, and as measured in terms of SATS 1286:2011; and
- (c) The local content percentage (%) indicated below has been calculated using the formula given in clause 3 of SATS 1286:2011, the rates of exchange indicated in paragraph 3.1 above and the information contained in Declaration D and E which has been consolidated in Declaration C:

Bid price, excluding VAT (y)	R
Imported content (x), as calculated in terms of SATS 1286:2011	R
Stipulated minimum threshold for local content (paragraph 3 above)	
Local content %, as calculated in terms of SATS 1286:2011	

If the bid is for more than one product, the local content percentages for each product contained in Declaration C shall be used instead of the table above.

The local content percentages for each product has been calculated using the formula given in clause 3 of SATS 1286:2011, the rates of exchange indicated in paragraph 3.1 above and the information contained in Declaration D and E.

- (d) I accept that the Procurement Authority / Institution has the right to request that the local content be verified in terms of the requirements of SATS 1286:2011.
- (e) I understand that the awarding of the bid is dependent on the accuracy of the information furnished in this application. I also understand that the submission of incorrect data, or data that are not verifiable as described in SATS 1286:2011, may result in the Procurement Authority / Institution imposing any or all of the remedies as provided for in Regulation 14 of the Preferential Procurement Regulations, 2017

promulgated under the Preferential Policy Framework Act (PPPFA), 2000 (Act No. 5 of 2000).

SIGNATURE: _____

WITNESS No. 1 _____

DATE: _____

WITNESS No. 2 _____

DATE: _____

Annex C

Local Content Declaration - Summary Schedule

(C1) Tender No.			
(C2) Tender description:			
(C3) Designated product(s)			
(C4) Tender Authority:			
(C5) Tendering Entity name:			
(C6) Tender Exchange Rate:	Pula		EU
(C7) Specified local content %			

Note: VAT to be excluded from all calculations

GBP

Calculation of local content							
Tender item no's	List of items	Tender price - each (excl VAT)	Exempted imported value	Tender value net of exempted imported content	Imported value	Local value	Local content % (per item)
(C8)	(C9)	(C10)	(C11)	(C12)	(C13)	(C14)	(C15)

Tender summary			
Tender Qty	Total tender value	Total exempted imported content	Total Imported content
(C16)	(C17)	(C18)	(C19)

Signature of tenderer from Annex B

Date:

(C20) Total tender value

(C21) Total Exempt imported content

(C22) Total Tender value net of exempt imported content

(C23) Total Imported content

(C24) Total local content

(C25) Average local content % of tender

Annex D

Imported Content Declaration - Supporting Schedule to Annex C

(D1) Tender No. _____

(D2) Tender description: _____

(D3) Designated Products: _____

(D4) Tender Authority: _____

(D5) Tendering Entity name: _____

(D6) Tender Exchange Rate: _____ Pula _____

Note: VAT to be excluded from all calculations

EU R 9,00 GBP R 12,00

A. Exempted imported content

				Calculation of imported content						Summary	
Tender item no's	Description of imported content	Local supplier	Overseas Supplier	Foreign currency value as per Commercial Invoice	Tender Exchange Rate	Local value of imports	Freight costs to port of entry	All locally incurred landing costs & duties	Total landed cost excl VAT	Tender Qty	Exempted imported value
(D7)	(D8)	(D9)	(D10)	(D11)	(D12)	(D13)	(D14)	(D15)	(D16)	(D17)	(D18)
(D19) Total exempt imported value										R 0	
This total must correspond with Annex C - C 21											

B. Imported directly by the Tenderer

				Calculation of imported content						Summary	
Tender item no's	Description of imported content	Unit of measure	Overseas Supplier	Foreign currency value as per Commercial Invoice	Tender Rate of Exchange	Local value of imports	Freight costs to port of entry	All locally incurred landing costs & duties	Total landed cost excl VAT	Tender Qty	Total imported value
(D20)	(D21)	(D22)	(D23)	(D24)	(D25)	(D26)	(D27)	(D28)	(D29)	(D30)	(D31)
(D32) Total imported value by tenderer										R 0	

C. Imported by a 3rd party and supplied to the Tenderer

				Calculation of imported content						Summary	
Description of imported content	Unit of measure	Local supplier	Overseas Supplier	Foreign currency value as per Commercial Invoice	Tender Rate of Exchange	Local value of imports	Freight costs to port of entry	All locally incurred landing costs & duties	Total landed cost excl VAT	Quantity imported	Total imported value
(D33)	(D34)	(D35)	(D36)	(D37)	(D38)	(D39)	(D40)	(D41)	(D42)	(D43)	(D44)
(D45) Total imported value by 3rd party										R 0	

D. Other foreign currency payments

			Calculation of foreign currency payments		Summary of payments	
Type of payment	Local supplier making the payment	Overseas beneficiary	Foreign currency value paid	Tender Rate of Exchange	Local value of payments	
(D46)	(D47)	(D48)	(D49)	(D50)	(D51)	

Signature of tenderer from Annex B

(D52) Total of foreign currency payments declared by tenderer and/or 3rd party

(D53) Total of imported content & foreign currency payments - (D32), (D45) & (D52) above

Date: _____

This total must correspond with Annex C - C 23

Annex E

ESSENTIAL RETURNABLE DOCUMENT:

FAILURE TO FULLY COMPLETE, DECLARE, SIGN & DATE THIS ANNEXURE E MAY RESULT IN THE BID BEING NON-RESPONSIVE & DISQUALIFIED

Local Content Declaration - Supporting Schedule to Annex C

(E1)	Tender No.	
(E2)	Tender description:	
(E3)	Designated products:	
(E4)	Tender Authority:	
(E5)	Tendering Entity name:	

Note: VAT to be excluded from all calculations

Local Products (Goods, Services and Works)	Description of items purchased	Local suppliers	Value
	(E6)	(E7)	(E8)
(E9) Total local products (Goods, Services and Works)			R 0

(E10) **Manpower costs** (Tenderer's manpower cost) R 0

(E11) **Factory overheads** (Rental, depreciation & amortisation, utility costs, consumables etc.) R 0

(E12) **Administration overheads and mark-up** (Marketing, insurance, financing, interest etc.) R 0

(E13) Total local content R 0

This total must correspond with Annex C - C24

Signature of tenderer from Annex B

Date: _____